



Reprinted
January 29, 2026

SENATE BILL No. 282

DIGEST OF SB 282 (Updated January 28, 2026 2:35 pm - DI 104)

Citations Affected: IC 16-42; IC 25-22.5.

Synopsis: Compounding drugs; registration of medical spas. Requires specified pharmacies to comply with specified provisions of the federal Food, Drug, and Cosmetic Act. Allows the Indiana board of pharmacy to investigate and enforce compliance by the pharmacies. Beginning January 1, 2027, requires the registration of medical spas under the medical licensing board of Indiana (board). Requires the board to establish and maintain a public data base concerning registered medical spas. Requires a medical spa to designate a responsible practitioner that meets certain requirements and specifies duties of the responsible practitioner. Requires a medical spa to notify the board after a serious adverse event. Prohibits a medical spa from providing health care services and cosmetic and lifestyle treatments in a location other than the medical spa, a physician's office, or other health care facility. Allows the board to take disciplinary action, including the suspension of a medical spa registration.

Effective: July 1, 2026.

Charbonneau, Busch

January 12, 2026, read first time and referred to Committee on Health and Provider Services.
January 22, 2026, amended, reported favorably — Do Pass.
January 28, 2026, read second time, amended, ordered engrossed.

SB 282—LS 7068/DI 104



Reprinted
January 29, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 282

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-42-22.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 22.5. Drugs: Pharmacy Compliance with the Federal**
5 **Food, Drug, and Cosmetic Act**

6 **Sec. 1. (a) Except as provided in subsection (b), this chapter**
7 **applies to the following pharmacies that have a permit issued**
8 **under IC 25-26-13:**

9 **(1) A pharmacy that is subject to Section 503A of the federal**
10 **Food, Drug, and Cosmetic Act (21 U.S.C. 353a).**

11 **(2) A pharmacy registered with the federal Food and Drug**
12 **Administration as an outsourcing facility that is subject to**
13 **Section 503B of the federal Food, Drug, and Cosmetic Act (21**
14 **U.S.C. 353b).**

15 **(b) This chapter does not apply to the following:**

16 **(1) An entity licensed under IC 16-21.**

17 **(2) A pharmacy regulated by the board that holds a Category**

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II permit as set forth in IC 25-26-13-17.

(3) The compounding of a drug for animal use.

(4) The compounding of a drug for a specific individual due to an allergy or required dosage specification.

Sec. 2. (a) A pharmacy described in section 1(a)(1) of this chapter shall comply with Section 503A of the federal Food, Drug, and Cosmetic Act and any federal regulation promulgated under Section 503A of the federal Food, Drug, and Cosmetic Act.

(b) A pharmacy described in section 1(a)(2) of this chapter shall comply with Section 503B of the federal Food, Drug, and Cosmetic Act and any federal regulation promulgated under Section 503B of the federal Food, Drug, and Cosmetic Act.

Sec. 3. The Indiana board of pharmacy may do the following:

(1) Investigate any alleged violation of this chapter.

(2) Enforce this chapter in accordance with IC 25-26-13-7.

(3) Request an injunction for a violation of this chapter in accordance with IC 25-26-13-28.

SECTION 2. IC 25-22.5-12.5 IS ADDED TO THE INDIANA CODE AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

Chapter 12.5. Medical Spas

Sec. 1. (a) As used in this chapter, "medical spa" means a facility or practice that:

(1) offers or provides medical health care services;

(2) engages in the preparation, administration, or dispensing of prescription drugs or otherwise uses prescription drugs for intravenous, intramuscular, or subcutaneous delivery; and

(3) holds itself out as a facility or practice focused on cosmetic or lifestyle treatments, including any of the following:

(A) Weight loss.

(B) Wellness.

(C) Longevity.

(D) Cosmetic or aesthetic health services and treatments, including the preparation, administration, or dispensing of prescription drugs for:

(i) weight loss;

(ii) botulinum toxin injections and dermal fillers;

(iii) hair loss;

(iv) hormone therapies; or

(v) parenteral nutrient therapies.

(b) The term does not apply to a facility or practice that is otherwise licensed by the state.



1 **Sec. 2. As used in this chapter, "practitioner" means any of the**
 2 **following:**

- 3 (1) A physician licensed under IC 25-22.5.
 4 (2) An advanced practice registered nurse who meets the
 5 requirements of IC 25-23-1-19.5.
 6 (3) A physician assistant licensed under IC 25-27.5 who is
 7 delegated prescriptive authority under IC 25-27.5-5-6.

8 **Sec. 3. (a) Beginning January 1, 2027, a medical spa is required**
 9 **to be registered under this chapter in order to do business in**
 10 **Indiana.**

11 (b) The board shall establish a registration procedure for
 12 medical spas for implementation not later than January 1, 2027.
 13 An application for registration for a medical spa must include the
 14 following:

- 15 (1) The name of the medical spa.
 16 (2) The address of the medical spa.
 17 (3) The medical health care services intended to be provided
 18 at the medical spa.
 19 (4) The prescription drugs that are intended to be prepared,
 20 administered, dispensed, or otherwise used at the medical spa,
 21 including whether the prescription drug is compounded.
 22 (5) The name and license number of the medical spa's licensed
 23 responsible practitioner described in section 5 of this chapter.
 24 (6) The name and license number of the individuals and
 25 practitioners operating in the medical spa.

26 (c) The board may fine a person that operates an unregistered
 27 medical spa in an amount not to exceed five thousand dollars
 28 (\$5,000) and require that the person obtain registration under this
 29 chapter in order to do business in Indiana.

30 **Sec. 4. (a) The board shall establish and maintain a public data**
 31 **base that contains:**

- 32 (1) the information specified in section 3(b) of this chapter for
 33 each registered medical spa; and
 34 (2) any disciplinary action taken by the board for a violation
 35 of this chapter.

36 (b) The board shall redact any personally identifying health
 37 information as confidential before including any information on
 38 the data base.

39 **Sec. 5. (a) A medical spa registered under this chapter must**
 40 **designate a responsible practitioner who meets the following:**

- 41 (1) Has prescriptive authority.
 42 (2) Has education and training in the health care services and



1 treatments being performed and medications being dispensed
2 or administered in the medical spa.

3 (b) A responsible practitioner shall be physically present at the
4 medical spa location for a sufficient amount of time to comply with
5 the responsibility of ensuring that the medical spa complies with
6 the requirements of this chapter. The board may require a medical
7 spa to receive the board's approval before a medical spa may
8 designate a responsible practitioner to be responsible for more
9 than one (1) location.

10 (c) A responsible practitioner shall ensure that each individual
11 working at the medical spa meets the following:

12 (1) Is licensed to perform the health care services and
13 treatments the individual is to perform and that the health
14 care services and treatments are within the individual's scope
15 of practice.

16 (2) Is properly trained in the performance of the health care
17 services and treatments being provided by the individual.

18 Sec. 6. (a) As used in this section, "serious adverse event" means
19 any negative medical occurrence associated with the use of a
20 prescription medication or treatment provided that results in,
21 based on a reasonable medical judgment, jeopardy to an
22 individual's health resulting in medical or surgical intervention or
23 any of the following outcomes:

24 (1) Death.

25 (2) A life threatening medical occurrence.

26 (3) Inpatient hospitalization or prolonging of an existing
27 hospitalization.

28 (4) Persistent or significant incapacity or substantial
29 disruption of the ability to conduct normal life functions.

30 (5) Congenital anomaly or birth defect.

31 (b) A medical spa shall notify the board in the manner
32 prescribed by the board not later than five (5) days after the
33 occurrence of a patient's serious adverse event. The notice must
34 include, to the extent that the information may be obtained or
35 reasonably available from the source, the following:

36 (1) The name of the patient, the prescription medication
37 treatment involved, and the date of the serious adverse event.

38 (2) The nature and location of the serious adverse event.

39 (3) The medical records for the patient concerning the serious
40 adverse event.

41 Sec. 7. (a) The board, or a person contracting with the board,
42 may inspect a medical spa that:



1 (1) has applied for registration; or
2 (2) is registered;
3 under this chapter. A person that denies access to the facility for an
4 inspection violates this chapter.

5 (b) The board shall investigate any claim of a violation of this
6 chapter and take any necessary enforcement action.

7 Sec. 8. (a) The board may take disciplinary action under
8 IC 25-1-9 against a medical spa registered under this chapter for
9 failure to comply with this chapter or IC 16-42-22.5.

10 (b) The board may suspend a registration under this chapter
11 pursuant to the requirements set forth in IC 25-1-9-10.

12 Sec. 9. A medical spa may not provide health care services and
13 cosmetic and lifestyle treatments to a consumer at a location other
14 than the medical spa office, a physician's office, or other licensed
15 health care facility.

16 Sec. 10. The board may adopt rules under IC 4-22-2 that are
17 necessary to implement this chapter.



COMMITTEE REPORT

Mr. President: The Senate Committee on Health and Provider Services, to which was referred Senate Bill No. 282, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, delete lines 1 through 4.

Page 2, between lines 2 and 3, begin a new paragraph and insert:

"SECTION 4. IC 16-18-2-373.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 373.5. "Wholesale drug distributor", for purposes of IC 16-42-22.5, has the meaning set forth in IC 16-42-22.5-5.**"

Page 2, line 6, after "on" insert "Certain".

Page 2, delete lines 7 through 42, begin a new paragraph and insert:

"Sec. 1. (a) This chapter applies to compounding concerning a glucagon-like-peptide-1 substance used for weight management.

(b) This chapter does not apply to the following:

(1) An entity licensed under IC 16-21.

(2) A pharmacy regulated by the board that holds a Category II permit as set forth in IC 25-26-13-17.

(3) The compounding of the drug for animal use.

(4) The compounding of the drug described in subsection (a) for a specific individual due to an allergy or required dosage specification.

Sec. 2. (a) As used in this chapter, "bulk drug substance" has the meaning set forth in 21 CFR 207.3 for the drug specified in section 1(a) of this chapter.

(b) The term does not include inactive ingredients, including flavoring agents.

Sec. 3. (a) As used in this chapter, "bulk drug substance manufacturing establishment" means a facility that originally created the bulk drug substance through chemical, physical, biological, or other procedures or manipulations.

(b) The term does not include a wholesaler, relabeler, repacker, or similar entity.

Sec. 4. (a) As used in this chapter, "compounding" means the combining, admixing, mixing, diluting, pooling, reconstituting, or otherwise altering of a drug or bulk drug substance to create a compounded preparation.

(b) The term does not include the mixing, reconstituting, or other acts that are performed in accordance with the directions



contained in the labeling approved by the federal Food and Drug Administration provided by the product's manufacturer and other manufacturer directions consistent with the labeling.

Sec. 5. As used in this chapter, "wholesale drug distributor" has the meaning set forth in IC 25-26-14-12.

Sec. 6. (a) A person may not engage in compounding for human use under 21 U.S.C. 353a unless the following requirements are met:

- (1) The bulk drug substance used may be used in compounding under 21 U.S.C. 353a(b)(1).
- (2) Any bulk drug substance used under 21 U.S.C. 353a(b)(1)(A)(i)(II) has been reviewed as part of a new drug application that has been approved by the federal Food and Drug Administration under 21 U.S.C. 355.
- (3) The bulk drug substance is a pharmaceutical grade product for human use.
- (4) The bulk drug substance is accompanied by a valid certificate of analysis that includes any information that the board requires through the adoption of rules under IC 4-22-2.
- (5) Either of the following requirements for documentation of quality control testing before use of the bulk drug substance in a compounded drug:
 - (A) A person engaged in compounding conducts and documents, or obtains documentation of, quality control testing of any bulk drug substance not used under 21 U.S.C. 353a(b)(1)(A)(i)(I) that includes the following:
 - (i) Confirming the identity of the bulk drug substance.
 - (ii) Reporting, identifying, characterizing, and quantifying each impurity present in the bulk drug substance in an amount exceeding one-tenth percent (0.1%).
 - (iii) Meeting any requirements of the board set forth through the adoption of rules under IC 4-22-2.
 - (B) The certificate of analysis contains the information set forth in clause (A)(i) through (A)(iii).
- (6) The bulk drug substance is accompanied with written verification that the bulk drug substance was manufactured at a bulk drug substance manufacturing establishment that:
 - (A) is registered as a human drug establishment with the federal Food and Drug Administration under 21 U.S.C. 360;
 - (B) has been inspected by the federal Food and Drug



Administration as a human drug establishment;
 (C) is not currently subject to an federal Food and Drug
 Administration Import Alert; and
 (D) is not currently subject to:
 (i) an unresolved federal Food and Drug Administration
 Warning Letter; or
 (ii) federal Food and Drug Administration inspection
 that is classified as Official Action Indicated.

The verification under this subdivision must include the
 country in which the bulk drug substance manufacturing
 establishment is located.

(7) The compounding complies with the federal Food, Drug,
 and Cosmetic Act an all other applicable requirements under
 Indiana law.

(b) Any person engaging in the sale, transfer, or distribution of
 compounded drugs shall do the following:

(1) Maintain all records related to the acquisition,
 examination, and testing of the bulk drug substance for at
 least two (2) years after the expiration date of the last lot of
 drug containing the bulk drug substance.

(2) Furnish, upon request by the board, the records described
 in subdivision (1) not later than one (1) business day after
 receipt of the request unless a reasonable alternative time
 frame is indicated by the board based on the circumstances of
 the request.

(c) Upon the request of the Indiana board of pharmacy during
 an inspection or as part of the review of a license application for
 records described in subsection (b), a person that engages in
 compounding shall provide the records to the board not later than
 either:

(1) one (1) business day after receipt of the request; or
 (2) within a reasonable time, as determined by the Indiana
 board of pharmacy given the circumstances of the request.

(d) A wholesale drug distributor distributing bulk drug
 substances in Indiana for use in compounding shall provide to the
 purchaser of a bulk drug substance with the following:

(1) The valid certificate of analysis described in subsection
 (a)(4).

(2) The documentation of quality control testing described in
 subsection (a)(5), if the testing is not conducted by the
 purchaser of the bulk drug substance.

(3) The written verification set forth in subsection (a)(6).



Sec. 7. (a) The state department, in consultation with the Indiana board of pharmacy, the medical licensing board of Indiana, the Indiana state board of nursing, and the office of the attorney general shall develop and publish a report not later than November 15 of each year concerning the oversight of drug compounding during the preceding fiscal year.

(b) The report must include the following:

(1) A general assessment of the public health impact drug compounding, including the benefits and risks presented by compounding.

(2) The following data and information from the preceding fiscal year:

(A) The number and type of professional licenses issued, by license type, under which the license holder may engage in drug compounding, and whether any of the licenses issued include sterile compounding.

(B) The number of licensed facilities and practices that have been inspected in the previous year and the previous three (3) years, categorized by license type.

(C) The number of inspections conducted on a licensed facility or practice that:

(i) conducts drug compounding; or

(ii) handles, stores, administers, dispenses, distributes, or uses compounded drugs in a retail or outpatient setting, including a 503A pharmacy (as described in 21 U.S.C. 353a), a 503B outsourcing facility (as described in 21 U.S.C. 353b), and a medical spa under IC 25-22.5-12.5.

(D) The nature and severity of any deficiency or violation found by the regulating board in an investigation of a person or facility specified in this subsection.

(E) The number of investigations conducted concerning drug compounding.

(F) The number and type of disciplinary actions taken by each board that related to drug compounding.

(G) The number and type of disciplinary actions taken by each board or state agency concerning the improper marketing, advertising, or promotion of compounding drugs or related services.

(H) An assessment of the staffing and resources of each regulating board concerning compounding drugs.

(c) The report required by this section must be posted on the state department's website and the Indiana board of pharmacy's



website. The state department shall submit the report to the legislative council in an electronic format under IC 5-14-6.

(d) This section expires December 31, 2030."

Delete pages 3 through 4.

Page 5, delete lines 1 through 30.

Page 5, line 31, delete "IC 25-26-13.7" and insert "IC 25-22.5-12.5".

Page 5, line 34, delete "13.7." and insert "**12.5**".

Page 6, line 4, delete "service," and insert "**services and treatments,**".

Page 6, line 8, delete ";" and insert "**and dermal fillers;**

(iii) hair loss;".

Page 6, line 9, delete "(iii)" and insert "**(iv)**".

Page 6, line 10, delete "(iv)" and insert "**(v)**".

Page 6, line 13, after "2." insert "**As used in this chapter, "practitioner" means any of the following:**

(1) A physician licensed under IC 25-22.5.

(2) An advanced practice registered nurse who meets the requirements of IC 25-23-1-19.5.

(3) A physician assistant licensed under IC 25-27.5 who is delegated prescriptive authority under IC 25-27.5-5-6.

Sec. 3."

Page 6, delete lines 22 through 24, begin a new line block indented and insert:

"(3) The medical health care services intended to be provided at the medical spa.

(4) The prescription drugs that are intended to be prepared, administered, dispensed, or otherwise used at the medical spa, including whether the prescription drug is compounded.

(5) The name and license number of the medical spa's licensed responsible practitioner described in section 5 of this chapter.

(6) The name and license number of the individuals and practitioners operating in the medical spa."

Page 6, line 26, after "spa" insert "**in an amount not to exceed five thousand dollars (\$5,000)**".

Page 6, line 28, delete "3." and insert "**4**".

Page 6, line 30, delete "2(b)" and insert "**3(b)**".

Page 6, delete lines 37 through 42, begin a new paragraph and insert:

"Sec. 5. (a) A medical spa registered under this chapter must designate a responsible practitioner who meets the following:

(1) Has prescriptive authority.

(2) Has education and training in the health care services and



treatments being performed and medications being dispensed or administered in the medical spa.

(b) A responsible practitioner shall be physically present at the medical spa location for a sufficient amount of time to comply with the responsibility of ensuring that the medical spa complies with the requirements of this chapter. The board may require a medical spa to receive the board's approval before a medical spa may designate a responsible practitioner to be responsible for more than one (1) location.

(c) A responsible practitioner shall ensure that each individual working at the medical spa meets the following:

(1) Is licensed to perform the health care services and treatments the individual is to perform and that the health care services and treatments are within the individual's scope of practice.

(2) Is properly trained in the performance of the health care services and treatments being provided by the individual."

Page 7, delete lines 1 through 3.

Page 7, line 4, delete "5." and insert "6."

Page 7, line 6, after "medication" insert "or treatment provided".

Page 7, line 21, after "medication" insert "treatment".

Page 7, line 26, delete "6." and insert "7."

Page 7, line 34, delete "7." and insert "8."

Page 7, line 37, delete "if" and insert "pursuant to the requirements set forth in IC 25-1-9-10."

Page 7, delete line 38.

Page 7, line 39, delete "8." and insert "9. A medical spa may not provide health care services and cosmetic and lifestyle treatments to a consumer at a location other than the medical spa office, a physician's office, or other licensed health care facility.

Sec. 10."

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 282 as introduced.)

CHARBONNEAU, Chairperson

Committee Vote: Yeas 11, Nays 0.

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SENATE MOTION

Mr. President: I move that Senate Bill 282 be amended to read as follows:

Page 1, delete lines 1 through 17.

Page 2, delete lines 1 through 3.

Page 2, delete lines 7 through 42, begin a new paragraph and insert:

"Chapter 22.5. Drugs: Pharmacy Compliance with the Federal Food, Drug, and Cosmetic Act

Sec. 1. (a) Except as provided in subsection (b), this chapter applies to the following pharmacies that have a permit issued under IC 25-26-13:

(1) A pharmacy that is subject to Section 503A of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 353a).

(2) A pharmacy registered with the federal Food and Drug Administration as an outsourcing facility that is subject to Section 503B of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 353b).

(b) This chapter does not apply to the following:

(1) An entity licensed under IC 16-21.

(2) A pharmacy regulated by the board that holds a Category II permit as set forth in IC 25-26-13-17.

(3) The compounding of a drug for animal use.

(4) The compounding of a drug for a specific individual due to an allergy or required dosage specification.

Sec. 2. (a) A pharmacy described in section 1(a)(1) of this chapter shall comply with Section 503A of the federal Food, Drug, and Cosmetic Act and any federal regulation promulgated under Section 503A of the federal Food, Drug, and Cosmetic Act.

(b) A pharmacy described in section 1(a)(2) of this chapter shall comply with Section 503B of the federal Food, Drug, and Cosmetic Act and any federal regulation promulgated under Section 503B of the federal Food, Drug, and Cosmetic Act.

Sec. 3. The Indiana board of pharmacy may do the following:

(1) Investigate any alleged violation of this chapter.

(2) Enforce this chapter in accordance with IC 25-26-13-7.

(3) Request an injunction for a violation of this chapter in accordance with IC 25-26-13-28."

Delete pages 3 through 4.



Page 5, delete lines 1 through 38.

Renumber all SECTIONS consecutively.

(Reference is to SB 282 as printed January 23, 2026.)

JOHNSON T

